

Whangarei District Council Meeting Minutes

Date: Thursday, 24 October, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Scribe

C Brindle (Senior Democracy Adviser)

Administration

- Meeting livestreamed

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made in the open section of the meeting.

3. Apologies / Kore Tae Mai

Cr Paul Yovich (early departure) and Cr Phoenix Ruka (late arrival).

Moved By Cr Carol Peters

Seconded By Cr Deborah Harding

That the apologies be sustained.

Carried

Cr Phoenix Ruka joined the meeting at 9:02am following apologies.

4. Public Forum / Huihuinga-a-tangata

Colin Edwards - renewal of ground lease - legal fees

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 26 September 2024

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held Thursday 26 September 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Cobham Oval - Parking restrictions

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That Council:

1. Notes the feedback from Elected Members at a Briefing on 11 September to introduce permanent parking restrictions at Cobham Oval by Council resolution;
2. Reserves, under section 591 of the Local Government Act 1974 and under clause 15.1.a of the Parking and Traffic Bylaw 2017, the area of the carpark southeast of Cobham Oval shaded blue in Attachment 1 as a parking place;
3. Prescribes, under clause 15.1.c of the Parking and Traffic Bylaw 2017, a maximum period of 4 hours for the parking of any vehicle at the Cobham Oval parking place, except for vehicles displaying Council-approved permits;
4. Specifies, under clause 16.1 of the Parking and Traffic Bylaw 2017, the four parking spaces highlighted yellow in Attachment 2 as mobility parking spaces;
5. Determines that the parking restrictions under resolutions (3) and (4) above will take effect once traffic control devices that evidence those restrictions are in place;

6. Directs staff to install the traffic control devices by 30 November 2024;
7. Notes that staff will have to apply regulatory discretion around enforcement of the restrictions in some instances;
8. Directs staff to report back on traffic management requirements and potential safety improvements within the road corridor that could reduce the use of traffic cones during an event, while addressing necessary health and safety requirements;
9. Directs staff to engage with Cobham Oval Trust, Northland Cricket Association and NECT on implementation and report back to Council with any changes that require a resolution.

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Paul Yovich

That the motion now be put.

On the procedural motion being put Cr Connop called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop		X	
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	7	7	0

**The motion was Lost (7 to 7)
on the Casting Vote of His Worship the Mayor**

On the motion being put Cr Connop called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop		X	
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	1	0

The Motion was Carried (13 to 1)

6.2 Local Government Funding Agency - 2024 Annual Meeting Matters

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That the Council:

1. Notes the Local Government Funding Agency has advised that its Annual Meeting will be held on 19 November 2024 in Wellington (and virtually upon request).
2. Notes that General Manager Corporate / Chief Financial Officer Alan Adcock will attend the Annual Meeting in his role as Local Government Funding Agency Director, not as a representative of Council.
3. As a consequence of item 2 above, Council appoints Craig Stobo, Local Government Funding Agency Chair, as Council's proxy.
4. Agrees that the proxy votes in favour of the following proposals which require ordinary shareholders resolutions:

LGFA Resolution 2: Election of Company Directors (undertaken by way of a poll)

- a) To re-elect Alan Adcock as a non-Independent Director for an additional three-year term
- b) To re-elect Craig Stobo as an Independent Director for an additional three-year term
- c) To elect Elena Trout as an Independent Director for a three-year term.

LGFA Resolution 3: Election of Nominating Local Authorities to the Shareholder's Council

- a) To re-elect Auckland Council as a Nominating Local Authority to the Shareholders' Council
- b) To re-elect Wellington City Council as a Nominating Local Authority to the Shareholders' Council.

LGFA Resolution 5: Changes to the Foundation Policies

To approve the amendments to the Foundation Policies of the Company.

- 5. Agrees that the proxy votes against the following proposal which requires ordinary shareholders resolutions:

LGFA Resolution 4: Directors' Remuneration

To approve the following increases in Director fees payable, in each case with effect from 1 July 2024:

- a) In respect of the Director acting as chair of the Board of Directors, an increase of \$3,720 per annum, from \$124,000 per annum to \$127,720 per annum
- b) In respect of the Director acting as chair of the audit and risk committee, an increase of \$2,340 per annum, from \$78,000 per annum to \$80,340 per annum
- c) In respect of each of the other Directors acting as members of the audit and risk committee, an increase of \$2,190 per annum, from \$73,000 per annum to \$75,190 per annum
- d) In respect of each of the other directors, an increase of \$2,100 per annum, from \$70,000 per annum to \$72,100 per annum.

Carried

6.3 Road Corridor Maintenance Contract Procurement Plan

Moved By Cr Simon Reid

Seconded By Cr Carol Peters

That the Council:

- 1. Approves the Procurement Plan for the Whangarei Road Corridor Maintenance Contracts

2. Notes Additional reporting requirements will be introduced during the contract implementation phase for staff to report on the contract progress and performance to the Chief Executive and the Chairman of the Infrastructure Committee on a quarterly basis in addition to monthly reporting through the Operations Report.
3. Notes that following the procurement process, Contract Awards will be brought back to council for approval. This is expected to be in April 2025.

Carried

6.4 Nominees for Joint Climate Change Adaptation Standing Committee - Hapū Membership

Moved By Cr Phoenix Ruka

Seconded By Cr Deborah Harding

That the Council:

1. Appoint Whangārei Hapū nominees to the Joint Climate Change Adaptation Standing Committee:
 - Primary Representative: Delaraine Armstrong
 - Alternate: Hinemoa Apetera.
2. Note that these appointments will replace the current Māori Ward Councillors in accordance with the Terms of Reference for the Joint Climate Change Adaptation Standing Committee (March 2022):
 - Cr Deb Harding
 - Cr Phoenix Ruka.
3. Acknowledge and thank Councillor Deb Harding and Councillor Phoenix Ruka for their work whilst on the Joint Climate Change Adaptation Standing Committee.
4. Note the WDC Elected Member on the Joint Committee is Councillor Scott McKenzie and that Councillor Nicholas Connop is the alternate member.

Carried

7. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Emergency Whangarei District Council 26 September 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	ICT – Contracts Update		
1.3	Update on the Insurance Policy Renewal for 2024-2025		
1.4	Land Purchase Springs Flat Project		
1.5	Potential Opportunities for High-Level Major Sporting Events in Northland		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.3	To protect information that would disclose a trade secret	Section 7(2)(b)(i)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)

Carried

A break was taken at this juncture from 10.20am to 10.30am.

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a karakia/prayer at 11.19am.

Confirmed this 28th day of November 2024

His Worship the Mayor Vince Cocurullo (Chairperson)

Confirmed Minutes